



DECISION

Complaint No. : POS/361/KE-63/25

Name and Address of the Complainant : Mr. Ali Nawaz r/o House No. 154/G, PECHS, Block-2, Karachi.

Name of the Agency Complained against : Karachi Water & Sewerage Corporation (KW&SC)

Name & Designation of Investigation Officer : Syed Farrukh Habib
Director, Regional Office, Karachi (East)

Subject :-

COMPLAINT REGARDING ALLEGED UNJUST DELAY IN CORRECTION OF BILL OF THE COMPLAINANT BY EXCLUDING THE AMOUNT OF UNCALLED FOR ARREARS AS THE AGENCY ARBITRARILY DECLARED HIS HOUSE AS COMMERCIAL IN THE YEAR 2011 AND CORRECTED THE SAME IN THE YEAR 2020 BUT BILL WAS NOT CORRECTED.

THE COMPLAINT

Mr. Ali Nawaz, in his complaint dated 24.01.2025, stated that he is resident of House No. 154/G, PECHS, Block-2, Karachi, where he has been residing since birth. The property, purchased by his father in 1971, falls under residential Category-A of Karachi Water & Sewerage Corporation (KW&SC) bearing Consumer No. E-242608000-A. He submitted that in September 2011, KW&SC, without any notice or lawful justification, arbitrarily converted his billing from residential to commercial, resulting in excessive charges, arrears and penalties.

2. He further stated that despite repeated applications and visits, the matter remained unresolved for years on the pretext of constitution of rectification committee. Although the billing category was restored to residential in February 2020, the accumulated arrears and penalties for the disputed period were not rectified and continue to appear in his bills. He added that he has been paying current bills as directed but has been deprived of availing concessional schemes due to non-resolution of his grievance. He, therefore, solicited intervention of this office for correction of the impugned arrears, removal of unjustified charges and issuance of revised bill, enabling him to avail the concessional relief.

PROCEEDINGS

3. After admission of the complaint by condoning delay under Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (as amended), and after receiving the mandatory Affidavit on Form "A" and other documents, report was called from the Agency. The Deputy Director (Rev), East, KW&SC, vide letter dated 19.05.2025, stated that the consumer, Zeenat Ishaq Shafi (Plot No. 2/154/G, PECHS, Consumer No. E-024-2608-000 A), was initially billed under Category-I (Schools) at Rs. 65/- per month. In September 2011, the Category-I tariff increased to Rs. 215/-, thus raising the consumer's bill. The KW&SC report clarified that the

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consumer had irregular bill payments history. Upon the consumer's complaint, KW&SC surveyed the property and in 2020 restored it to residential Category-A. The report explained that the dues having been disputed by the complainant were referred to higher authorities for resolution through a "Rectification Committee," which has not yet been formed. Although a 35% rebate policy was announced in November 2025, the consumer declined it, insisting that his dues be corrected first. Such case of rectification, report observed was pending with the KW&SC Head Office.

4. Upon enquiry from the office of Deputy Managing Director (RRG), KW&SC, it was informed vide letter dated 16.09.2025, that rectification of the incorrect billing for Plot No. 154-G, PECHS, Karachi, were to be addressed by the Rectification Committee after completion of all codal formalities and verification of documents. The Committee, report added, had not been functioning for a considerable period, has now been reconstituted (Notification No. KW&SC/DMD/HRD&A/115 dated 09.09.2025) and directions for preparation of cases have been issued (Letter No. KW&SC/RRG/Sr.Dir/Rev/2025/01/L dated 11.09.2025). The complainant's case will be considered in the Committee's upcoming meeting.

FINDINGS

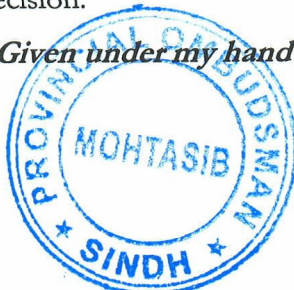
5. I have examined the case file, perused the complaint, agency responses, and all supporting documents. It is observed that the complainant, Mr. Ali Nawaz, has been a bona fide resident of House No. 154/G, PECHS, Block-2, Karachi, under residential Category-A (Consumer No. E-242608000-A). KW&SC, in September 2011, arbitrarily converted his billing category to commercial without notice or lawful justification, resulting in excessive arrears and penalties. Despite repeated representations by the complainant, the matter remained unresolved for years due to inaction and non-constitution of the Rectification Committee. Although the residential category was restored in February 2020, the arrears so piled up during this period and penalties continue to appear in his bills, and the complainant has been deprived of availing available concessional schemes. The conduct of KW&SC demonstrates undue delay, maladministration, and failure to implement corrective measures in a timely manner.

DECISION

6. In view of the above and in exercise of the powers conferred upon me vide Section 11 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (as amended up to date), I direct the Managing Director, Karachi Water & Sewerage Corporation, Karachi to rectify all dues, surcharges, and penalties erroneously levied on the bill of complainant, Mr. Ali Nawaz, on account of the wrongful classification of his property (House No. 154/G, PECHS, Block-2, Karachi; Consumer No. E-242608000-A) as commercial between September 2011 and February 2020. A revised bill, reflecting the residential tariff, should be issued to the complainant for payment, and he should be allowed to avail any applicable concessional/rebate scheme, including the 35% rebate announced in November 2025.

7. Compliance of this direction should be reported to this office within 60 days from the date of receipt of this decision.

Given under my hand and seal of the office



Sd /-

(Muhammad Sohail Rajput)

Sitara-e-Imtiaz. PAS

Ombudsman Sindh

Karachi, dated

22nd. 4- 2026